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Constitutional Rights At Stake: Assessing California's Gun Legislation AB-28 And SB-2 – OpEd

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Author: K. Lloyd Billingsley | Section: NEWS | 384 Words
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The California Assembly recently passed Assembly Bill 28, the "Gun Violence Prevention, Healing, and Recovery Act," authored by Assemblyman Jesse Gabriel, Woodland Hills Democrat. Under this measure, commencing on July 1, 2024, the state will "impose an excise tax in the amount of 11 percent of the gross receipts from the retail sale in this state of a firearm, firearm precursor part, and ammunition."

Revenue from the act will be "deposited in the Gun Violence Prevention, Healing, and Recovery Fund, which the bill would establish in the State Treasury." The money will "fund various gun violence prevention, education, research, response, and investigation programs." The bill also requires the Director of Finance "to transfer, as a loan, $2,400,000 from the General Fund to the California Department of Tax and Fee Administration to implement these provisions."

The act maintains that "firearms remain a leading cause of death, injury, and trauma for young people and especially young people of color in this state."

The bill will not apply to criminals who do not obtain firearms through legal channels. The additional 11 percent tax is certain to boost the black market. In conditions of rising crime, with homicides up by more than 40 percent, the measure will make it more difficult for law-abiding Californians to defend themselves. So will Senate Bill 2, a measure by Burbank Democrat Anthony Portantino, sponsored by Gov. Gavin Newsom and Attorney General Rob Bonta.

Last year the US Supreme Court struck down a New York gun law that put unconstitutional restrictions on the concealment of guns in public. California responded with a measure to make concealed carry weapon permits (CCWs) more challenging to obtain and retain.

California already imposes some of the most restrictive gun laws in the nation, including a requirement for background checks to purchase ammunition. In 2019, the background checks rejected 62,000 Californians legally entitled to buy ammunition, including sheriff's deputies purchasing shotgun shells to hunt ducks. State officials also exploited the law to confiscate weapons from those who had committed no crime.

In a similar style, AB-28 and SB-2 disrespect Californians' constitutional rights. For further reading, see The Right to Bear Arms: A Constitutional Right of the People or a Privilege of the Ruling Class? by Stephen P. Halbrook.

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